

subjects are either the king, or the king's subjects; for all the kingdom must be one of these two; but they are not the king, therefore they are his subjects.

Ans.—All the kingdom, in any consideration, is not either king or subjects. I give a third: The kingdom collective is neither properly king nor subject; but the kingdom embodied in a state, having collateral, is a co-ordinate power with the king.

Obj.—The university is ruled by laws, therefore they are inferior to the king who ruleth all by law.

Ans.—The university, properly, is no otherwise ruled by laws than the king is ruled by laws. The university, formally, is the complete politic body, endued with a nomothetic faculty, which cannot use violence against itself, and so is not properly under a law.

QUESTION XX.

WHETHER OR NO INFERIOR JUDGES BE UNIVOCALLY AND ESSENTIALLY JUDGES, AND THE IMMEDIATE VICARS OF GOD, NO LESS THAN THE KING, OR IF THEY BE ONLY THE DEPUTIES AND VICARS OF THE KING.

It is certain that, in one and the same kingdom, the power of the king is more in extension than the power of any inferior judge; but if these powers of the king and the inferior judges differ *intensive* and in *spece*, and nature is the question, though it be not all the question.

Assert.—Inferior judges are no less essentially judges, and the immediate vicars of God, than the king. Those who judge in the room of God, and exercise the judgment of God, are essentially judges and deputies of God, as well as the king; but inferior judges are such, therefore the proposition is clear. The formal reason, why the king is univocally and essentially a judge, is, because the king's throne is the Lord's throne; 1 Chron. xxix. 23, "Then Solomon sat on the throne of the Lord, as king, instead of David his father." 1 Kings i. 13, It is called David's throne, because the king is the deputy of Jehovah; and the judgment is the Lord's. I prove the assumption. Inferior judges appointed by king Jehoshaphat have this place, 2 Chron. xix. 6, "The king

said to the judges, Take heed what ye do, **כִּי לֹא לְאָדָם תִּשְׁפֹּטוּ כִּי לַיהוָה**, for ye judge not for man, but for the Lord." Then, they were deputies in the place of the Lord, and not the king's deputies in the formal and official acts of judging. Ver. 7, "Wherefore, now, let the fear of the Lord be upon you, take heed and do it; for there is no iniquity with the Lord our God, nor respect of persons, or taking of gifts.

Hence I argue, 1. If the Holy Ghost, in this good king, forbid inferior judges, wresting of judgment, respecting of persons, and taking of gifts, because the judgment is the Lord's, and if the Lord himself were on the bench, he would not respect persons, nor take gifts, then he presumeth, that inferior judges are in the stead and place of Jehovah, and that when these inferior judges should take gifts, they make, as it were, the Lord, whose place they represent, to take gifts, and to do iniquity, and to respect persons; but that the Holy Lord cannot do. 2. If the inferior judges, in the act of judging, were the vicars and deputies of king Jehoshaphat, he would have said, judge righteous judgment. Why? For the judgment is mine, and if I, the king, were on the bench, I would not respect persons, nor take gifts; and you judge for me, the Supreme Judge, as my deputies. But the king saith, They judge not for man, but for the Lord. 3. If, by this, they were not God's immediate vicars, but the vicars and deputies of the king, then, being mere servants, the king might command them to pronounce such a sentence, and not such a sentence as I may command my servant and deputy, in so far as he is a servant and deputy, to say this, and say not that; but the king cannot limit the conscience of the inferior judge, because the judgment is not the king's, but the Lord's. 4. The king cannot command any other to do that as king, for the doing whereof he hath no power from God himself; but the king hath no power from God to pronounce what sentence he pleaseth, because the judgment is not his own but God's. And though inferior judges be sent of the king, and appointed by him to be judges, and so have their external call from God's deputy the king, yet, because judging is an act of conscience, as one man's conscience cannot properly be a deputy for another man's conscience, so neither can an inferior judge, as a judge, be a deputy for a king. There-